TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
JULY 26, 2021
MINUTES

STAFF REPORT

Present: Barry Wolff, Chair, Stephen Duke, Stephen Wood, Aaron Butner, Elliott Barrow, Megan Stevens, Julian Hopkins.
Staff: Michael Robertson, David Pagliarini, Michele Reed, Kent Prause, Kara Browder, Lynnette Lynes

Mr. Wolff called the meeting to order at 6:00 pm.

A. Approval of Agenda

- *Mr. Wood moved for approval of the agenda. Mr. Duke seconded the motion. All in favor.*

B. Approval of Minutes

- *Mr. Wood moved for approval of the minutes. Mr. Duke seconded the motion. All in favor.*

C. Public Comment

- There being no comments, Mr. Wolff continued with the agenda.

D. General Correspondence

Mr. Robertson stated that correspondence was received requesting a continuance of the appeal for 234 Middle Street from corporate counsel. Mr. Pagliarini stated that a 30 day continuance should be sufficient time.

- *Mr. Duke moved for approval of the request for a continuance for 30 days. Ms. Stevens seconded the motion. All in favor.*

E. Explanation of Procedures

- Mr. Wolff explained the procedures for the public.

F. Administration of Oath

- Mr. Wolff administered the oath for those speaking.

G. Business

1. **Case A-4-2021, 123 Pitt Street, TMS# 532-01-00-083. Appeal of the Zoning Administrator's April 21, 2021, letter regarding 123 Pitt Street for parking pursuant to §156.140 Nonconformities. The applicant contends that the current use is a conforming use, not a non-conforming use, on the issue of parking; therefore, §156.140 does not apply. Applicant requests the following relief: reverse the April 21, 2021, determination.**

   RECORD OF ZONING OFFICIAL CORRESPONDENCE
   MEMORANDUM ZONING OFFICIAL

   Executive Session: Legal Counsel, Case A-4-2021, 123 Pitt Street, TMS# 532-01-00-083. The Board of Zoning Appeals may seek and receive legal counsel related to Case A-4-2021.

   Post Executive Session: The Board of Zoning Appeals may take action on this item, including any subsection of any section, listed on an executive session agenda or discussed in an executive session during a properly noticed meeting.

- Mr. Pagliarini stated that Mr. Bryan Quisenberry will be representing the Board regarding any legal advice. He stated that he would be representing staff for this case.

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Kent Prause, Zoning Administrator, and Mr. Pagliarini, attorney, reviewed his position regarding his determination on the parking issue with the Board.

- Mr. Ross Appel, attorney for Mr. Chris Colman, reviewed the request with the Board.

- Ms. Jennifer Ivey, attorney for Scotts, reviewed their position on the determination letter with the Board.

- Ms. Carmen Scott, 123 Pitt Street, stated that they would like to have a bakery at this location. She stated that this business would provide a niche to the Pitt Street area. She stated that the bakery would close in the early afternoon and will not be competing with evening parking needs. She stated that this is an allowed use as evidenced by the Zoning Administrator's letter.

- Ms. Jaquelynn Story, business owner, stated that she is excited to open her business on Pitt Street. She suggested that the business would be an asset to the neighborhood.

- Mr. Paul Trouche, 320 Bennett, stated that he is in support of Mr. Colman's request. He suggested that the Zoning Administrator's determination was in error and that the needed parking should be provided for the use to exist in the neighborhood.

- Mr. Chris Colman, 118 Pitt Street, distributed correspondence to the Board for review. He stated that the information includes case law in support of his position that the parking requirements should be upheld. He suggested that the determination does not include restrictions on the bakery regarding hours of operation, number of seats, etc. He suggested that there should be limits established for the businesses. He expressed concern with noise, vermin, etc.

- Mr. Will Dupre, 744 Pitt Street, stated that he is in support of the business. He suggested that it would enhance the community and would be an asset to the neighborhood.

- Mr. Mike Tinkey, 208 Venning, stated that he supports the business and the Zoning Administrator's determination. He suggested that there is broad support from neighbors and the community. He suggested that any changes should be considered outside of this appeal and worked out between the owners and the neighborhood.

- Mr. Larry Duffy, 448 Church Street, stated that he is not in favor of the use in the neighborhood. He suggested that this is not a change in parking, but a change in the character of the neighborhood. He expressed concern that the use would cause more traffic congestion and exacerbate the lack of parking that already exists.

- Mr. Edwin Williamson, 316 Bennett, suggested that the bakery would quickly expand service and hours of operation. He stated that parking is already an issue and suggested that the business would worsen the situation.

- Mr. James Kennedy, 410 Church St, stated that there has always been a business at that location. He supports the Zoning Administrator's letter.

- Ms. Ebony Mullins, 105 Pitt St, expressed concern with traffic along Pitt St and suggested that the street should be a one way street. She suggested that another concern is that there is angled parking that can cause additional traffic concerns. She suggested that the parking on Pitt St is such an issue that it is affecting her business. She suggested that there should be safe access and parking.

- Ms. Phylicia Wilson, 311 Morrison Street, suggested that they have had issues with trucks breaking water pipes to their home and suggested that the delivery trucks are degrading the road. She suggested that this has caused additional expense through repairs and increased water bills. She suggested that additional service trucks could cause further damage to the roadway and water lines.

- Mr. Randy Gragg, 1488 Short St, supports the business on Pitt St. He suggested that there is not a traffic issue. He stated that he is looking forward to the new business on Pitt St.

- Ms. Maria Mebbin, 216 Venning St, stated that they are excited about having the bakery in the neighborhood. She suggested that the business would be an asset to the neighborhood.

- Mr. James Scott, owner of 123 Pitt St, stated that parking is the sole issue before the Board. He suggested that there has been misinformation regarding the proposed business. He suggested that many of the residents of the historic district are in favor of the proposed business. He suggested that this is not a new use and suggested that this is a use that has been missed by the neighborhood.

- Mr. Thomas Foster, 846 Pitt St, was sworn in by Mr. Wolff. He suggested that there is a fair amount of parking available nearby and suggested that an amicable resolution should be available.

There being no further comments, Mr. Wolff closed public comment. Seeing another speaker, Mr. Wolff opened public comment.

Mr. Edmond Frampton, 215 Pitt St, was sworn in by Mr. Wolff. He stated that there is differing information. He stated that parking is an issue in the area. He suggested that there are areas that could be used for parking.

- Mr. Appel gave his rebuttal and stated that the main issue is that this would allow staff approval for parking in the future. He suggested that de novo review would allow amendments to the Zoning Administrator's letter and add conditions to the approval. He reviewed these proposed conditions with the Board.

- Mr. Prause stated that the ordinance would apply to the entire Town and not the historic district. He suggested that conditions cannot be placed on the approval. He stated that it does not show that the approval in 2012 would mean that there are any parking requirements.

- Mr. Pagliarini stated that the issue is whether the Zoning Administrator's determination was correct.

- *Mr. Wood moved to enter into executive session for legal advice. Mr. Hopkins seconded the motion. All in favor.*

- The Board convened into executive session at 7:04 pm and reconvened at 7:25 pm. No action taken while in executive session.

- *Ms. Stevens moved for denial of the appeal and affirm the Zoning Administrator's decision based on the findings that §156.140 the change in use from retail to a café bakery does not require the provision of additional off-street parking. Mr. Hopkins seconded the motion. All in favor.*

2. REQUEST FOR CONTINUANCE Case A-5-2021, 234 Middle Street, TMS# 532-09-00-025. Appeal of Administrative Official's refusal to allow modification of the tree protection zone for a 53-inch live oak tree or,

in the alternative, to allow removal of 53-inch Live Oak tree. RECORD OF ZONING OFFICIAL CORRESPONDENCE

Executive Session: Legal Counsel, Case A-5-2021, 234 MIddle Street, TMS# 532-09-00-025. The Board of Zoning Appeals may seek and receive legal counsel related to Case A-5-2021.

Post Executive Session: The Board of Zoning Appeals may take action on this item, including any subsection of any section, listed on an executive session agenda or discussed in an executive session during a properly noticed meeting.

3. **REQUEST FOR CONTINUANCE Case V-19-2021, 234 Middle Street, TMS# 532-09-00-025. Request for relief from the strict application of §156.227 (A)(6) Modifications to Tree Protection Zones and §156.225 Removal of Historic and Significant Trees to allow encroachment into the tree protection zone or removal of the 53-inch Live Oak tree.**

These items were continued to the next meeting through a previous motion.

4. **Case A-6-2021, 411 Wando Park Blvd., TMS# 537-00-00-095. Appeal of the Zoning Administrator's May 12, 2021, letter denying issuance of a sign permit for digital, off-premises signs. The applicant contends that under the First Amendment to the Constitution of the United States of America, the Mt. Pleasant Zoning Ordinance constitutes an illegal restraint of free speech and thus is unconstitutional. Applicant requests issuance of permits. RECORD OF ZONING OFFICIAL**

Executive Session: Legal Counsel, Case A-6-2021, 411 Wando Park Blvd., TMS# 537-00-00-095. The Board of Zoning Appeals may seek and receive legal counsel related to Case A-6-2021.

Post Executive Session: The Board of Zoning Appeals may take action on this item, including any subsection of any section, listed on an executive session agenda or discussed in an executive session during a properly noticed meeting.

5. **Case A-7-2021, 512 Johnnie Dodds Blvd., TMS# 514-00-00-070. Appeal of the Zoning Administrator's May 12, 2021, letter denying issuance of a sign permit for digital, off-premises signs. The applicant contends that under the First Amendment to the Constitution of the United States of America, the Mt. Pleasant Zoning Ordinance constitutes an illegal restraint of free speech and thus is unconstitutional. Applicant requests issuance of permits. RECORD OF ZONING OFFICIAL**

Executive Session: Legal Counsel, Case A-7-2021, 512 Johnnie Dodds Blvd., TMS# 514-00-00-070. The Board of Zoning Appeals may seek and receive legal counsel related to Case A-7-2021.
Post Executive Session: The Board of Zoning Appeals may take action on this item, including any subsection of any section, listed on an executive session agenda or discussed in an executive session during a properly noticed meeting.

6. **Case A-8-2021, 1662 Highway 17 N, TMS# 559-00-00-522. Appeal of the Zoning Administrator's May 12, 2021, letter denying issuance of a sign permit for digital, off-premises signs. The applicant contends that under the First Amendment to the Constitution of the United States of America, the Mt. Pleasant Zoning Ordinance constitutes an illegal restraint of free speech and thus is unconstitutional. Applicant requests issuance of permits. RECORD OF ZONING OFFICIAL**
Executive Session: Legal Counsel, Case A-8-2021, 1662 Highway 17 N, TMS# 559-00-00-522. The Board of Zoning Appeals may seek and receive legal counsel related to Case A-8-2021.
Post Executive Session: The Board of Zoning Appeals may take action on this item, including any subsection of any section, listed on an executive session agenda or discussed in an executive session during a properly noticed meeting.

These items were withdrawn by staff.

7. **Case V-20-21, 1569 Landings Run, TMS# 559-09-00-057, Request for relief from the strict application of §156.303 (C) to allow 3-foot encroachment into rear yard setback for existing addition. The ordinance requires a 30-foot rear yard setback.**

▶ Mr. Robertson stated that there was an error in numbering the cases and stated that this would be corrected and the new case numbers reflected on the final orders. He reviewed staff comments with the Board.

▶ Ms. Natalie Kurtkaya, owner, reviewed the request with the Board.

▶ There being no comments, Mr. Wolff closed public comment.

- *Mr. Wood moved for approval of the variance based on the findings that structure is pre-existing, the encroachment is not being expanded, and all criteria has been met. Mr. Duke seconded the motion. All in favor.*

8. Case V-21-21, 103 Rose Lane, TMS# 532-01-00-069, Request for relief from the strict application of §156.225 (C) to allow removal of three (3) historic trees and two (2) non-historic trees.

- Mr. Robertson reviewed staff comments with the Board.

- Mr. Chad Quirin, owner, reviewed the request with the Board.

- Mr. Mike Tinkey, 208 Venning, suggested that it was a modest request. He asked that mitigation be imposed for the tree removal to help preserve the streetscape.

- Mr. David Graham, 124 Professional Lane, stated that it was a challenge in designing this home on this lot.

- Mr. Chris Gerards, arborist for owner, suggested that the trees would be compromised with the home construction if they remained. He also suggested that the tree would be compromised with a storm event and could fail and possibly fall. He suggested that the species is not

- Ms. MaryAnn Lykins, 110 Rose Lane, stated that she is in favor of the request for tree removal. She suggested that the trees do pose a hardship in development of the property because it is a smaller lot.

- Mr. Thomas Foster suggested that mitigation of the removal of the trees should be considered to maintain the streetscape.

- There being no further comments, Mr. Wolff closed public comment.

- *Mr. Barrow moved for denial based on the findings that all four conditions outlined in §156.411 have not been satisfied as there is no hardship as the trees were on the property when purchased, there are no extraordinary conditions as the lots on Rose Lane have significant trees, denial would not restrict the use of the property as the owner was aware of the condition of*

the lot when purchased, and there would be a detriment to the character of the neighborhood as removal would impair the public good in reducing air quality as well as diminish the streetscape. Mr. Wood seconded the motion. Motion failed on a 2 to 5 vote with Mr. Barrow and Mr. Wood in favor; Mr. Butner, Mr. Wolff, Mr. Hopkins, Ms. Stevens, and Mr. Duke opposed.

▶ *Mr. Wolff moved for approval based on the findings that all criteria outlined in §156.411 have been met with the condition that tree mitigation is applied per Town requirements. Mr. Hopkins seconded the motion. Motion passed on a 5 to 2 vote with Mr. Butner, Mr. Wolff, Mr. Hopkins, Ms. Steven, and Mr. Duke in favor; Mr. Barrow and Mr. Wood opposed.*

9. **Case A-9-21, Liberty Hill Development, TMS# 577-14-00-037, 039-046; Appeal of Zoning Official's determination that limits height to 35-feet for properties not located in a flood zone. Applicant requests that the Board allow 40-foot height for construction based on adopted flood maps at the time of the development agreement (Ordinance 18067). RECORD OF ZONING OFFICIAL**

Executive Session: Legal Counsel, Case A-9-2021, Liberty Hill Development, TMS# 577-00-00-037, 039-046. The Board of Zoning Appeals may seek and receive legal counsel related to Case A-9-2021.

Post Executive Session: The Board of Zoning Appeals may take action on this item, including any subsection of any section, listed on an executive session agenda or discussed in an executive session during a properly noticed meeting.

10. **Case V-22-21, 1489 Cultivation Lane, TMS# 577-14-00-037, Request for relief from the strict application of §156.102 (A)(1) to allow 40-foot building height. The ordinance limits building height to 35-feet for properties that are not located in a special flood hazard area.**
11. **Case V-23-21, 2370 N. Palmetto Fort, TMS# 577-14-00-039, Request for relief from the strict application of §156.102 (A)(1) to allow 40-foot building height. The ordinance limits building height to 35-feet for properties that are not located in a special flood hazard area.**
12. **Case V-24-21, 2366 N. Palmetto Fort, TMS# 577-14-00-040, Request for relief from the strict application of §156.102 (A)(1) to allow 40-foot building height. The ordinance limits building height to 35-feet for properties that are not located in a special flood hazard area.**
13. **Case V-25-21, 2362 N. Palmetto Fort, TMS# 577-14-00-041, Request for relief from the strict application of §156.102 (A)(1) to allow 40-foot**

building height. The ordinance limits building height to 35-feet for properties that are not located in a special flood hazard area.

14. **Case V-26-21, 2358 N. Palmetto Fort, TMS# 577-14-00-042, Request for relief from the strict application of §156.102 (A)(1) to allow 40-foot building height. The ordinance limits building height to 35-feet for properties that are not located in a special flood hazard area.**
15. **Case V-27-21, 2354 N. Palmetto Fort, TMS# 577-14-00-043, Request for relief from the strict application of §156.102 (A)(1) to allow 40-foot building height. The ordinance limits building height to 35-feet for properties that are not located in a special flood hazard area.**
16. **Case V-28-21, 2350 N. Palmetto Fort, TMS# 577-14-00-044, Request for relief from the strict application of §156.102 (A)(1) to allow 40-foot building height. The ordinance limits building height to 35-feet for properties that are not located in a special flood hazard area.**
17. **Case V-29-21, 2346 N. Palmetto Fort, TMS# 577-14-00-045, Request for relief from the strict application of §156.102 (A)(1) to allow 40-foot building height. The ordinance limits building height to 35-feet for properties that are not located in a special flood hazard area.**
18. **Case V-30-21, 2342 N. Palmetto Fort, TMS# 577-14-00-046, Request for relief from the strict application of §156.102 (A)(1) to allow 40-foot building height. The ordinance limits building height to 35-feet for properties that are not located in a special flood hazard area.**

These items were withdrawn by staff.

H. Approval of Final Orders

The Board signed final orders.

There being no further business, the meeting adjourned at 8:04 pm.

Submitted by,
L. Lynes
BOZA07262021